



Appeal Decision

Site visit made on 23 July 2026

by **D Marley BA (Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 22 September 2026

Appeal Ref: 6006644

64 Prestwich Avenue, Worcester WR5 1QF

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Mohammed Toqeer against the decision of Worcester City Council.
 - The application Ref is 25/00541/FUL.
 - The development proposed is described on the application form as “proposed 3 bedroom detached bungalow to rear garden amenity area”.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. During the course of the appeal, the Council adopted a new local plan, the South Worcestershire Development Plan Review (2026) (the ‘Local Plan’). The Council’s position on the appeal was unchanged following the Local Plan’s adoption, and the Council provided a comparison of current and former policies which identified the policies from the Local Plan most relevant to the determination of the appeal were Local Plan policies SWDPR 05, SWDPR 06 and SWDPR 28. The appellant has had the opportunity to comment on the policies identified. As such, I am satisfied that the parties would not be prejudiced by my reference to these policies in my decision.
3. Following submission of the appeal, a new National Planning Policy Framework (the ‘Framework’) was published on 17 August 2026. The main parties were given an opportunity to comment on any implications for the appeal, and I have taken responses received into account.

Main Issues

4. The main issues are:
 - the effect of the proposal on the character and appearance of the area;
 - whether the proposal would provide satisfactory living conditions for future occupiers, with particular regard to internal space and private outside space;
 - the effect of the proposal on highway safety; and
 - the effect of the proposal on the living conditions of the occupiers of 62 Prestwich Avenue, with particular regard to privacy, outlook and sunlight.

Reasons

Character and appearance

5. The appeal site comprises the existing two-storey dwelling and its largely open rear garden. Nearby dwellings are of a broadly similar size and arrangement. They form a row facing the road with a mostly consistent rear building line and rear garden areas. These gardens are generally open, with some single-storey outbuildings close to the appeal site. When viewed from the rear gardens, roof forms display a broadly consistent arrangement, typically hipped, with additional roof structures largely absent. There is also a nearby first-floor extension with a flat roof.
6. The proposal would introduce a new dwelling into the rear garden. Although described as a bungalow, the proposal would include living accommodation both on ground floor and within the roof. The new dwelling would include a pitched roof, and a roof dormer that would extend across the majority of one side of the proposed roof structure.
7. As a result of the largely consistent rear building line of nearby dwellings, nearby development displays a consistent arrangement of built development and private outside living space. The current dwelling's arrangement, with its largely open rear garden, forms part of this prevailing pattern of development.
8. By introducing a new dwelling into the rear garden, the proposal would contrast with the well-established rhythm of nearby buildings. This would disrupt the prevailing pattern of development arranged in a linear pattern with largely open rear garden spaces, and be harmful to character and appearance as a result.
9. There are some properties nearby that have outbuildings, and there are also some other sheds nearby. However, those in proximity to the appeal site are single storey and of limited height, and where located in rear gardens are clearly subservient to the host property which they serve. By contrast, the proposal would result in the erection of a dwelling of significantly greater overall height and scale than surrounding rear garden development. As such, the presence of nearby outbuildings does not lead me to an alternative conclusion on this matter.
10. Roof dormers may be a typical approach to providing living accommodation within a roof space, however given the overall size and extent of the proposed roof dormer, it would dominate the side extension of one of the elevations of the proposed dwelling. As a result, the dormer would appear as a bulky addition to the roofline, disrupting the appearance of the proposed dwelling. Equally, although roof dormers may be commonplace in some areas, similar roof structures to that proposed are absent from typical development nearby and, given this absence, the proposal would result in the introduction of a new dwelling with a substantial roof dormer that was out of character with existing nearby development.
11. The appellant makes reference to the potential for a future dwelling to have a dormer constructed under permitted development rights. However, notwithstanding the fact that no proposed dwelling has been permitted and as such the proposal does not benefit from permitted development rights, no substantive evidence has been submitted to support the claim that a roof dormer of the size and scale proposed would fall within the relevant class were planning permission to be

granted. As such, I afford this matter limited weight in the determination of this issue.

12. The proposal may be smaller in overall scale than the existing building, and both existing and proposed dwellings would be provided with garden areas. However, neither of these matters offset the harm I have identified.
13. Given the above, the proposal would have a harmful effect on the character and appearance of the area. The proposal would conflict with Policies SWDPR 05 and SWDPR 28 of the Local Plan. Amongst other matters, these policies require development proposals to be of a high quality that responds to distinctive local character, and integrate effectively with its surroundings.

Living conditions – future occupiers

Internal Space

14. The proposal would result in the introduction of a 3-bedroom dwelling. This would include living accommodation set over 2 floors. Whilst there is some dispute between the parties as to the total extent of internal space provided, on the evidence before me, the proposal would provide a maximum Gross Internal Area ('GIA') of 72sqm. Policy SWDPR 05 of the Local Plan identifies that proposals should provide appropriate internal space standards for new dwellings assessed against the nationally described space standards.
15. The Technical housing standards – nationally described space standard (the 'NDSS') identifies that a dwelling with 2 or more bedspaces is required to have at least 1 double bedroom. Therefore, whilst the appellant identifies that the proposal should be considered as a 3-bedroom 3-person dwelling in the context of the NDSS, the minimum occupancy under the NDSS would be as a 3-bedroom 4-person ('3b4p') dwelling. Equally, whilst the appellant considers that there would be only 2 occupiers of the property, there is no mechanism before me that would in perpetuity reasonably restrict future occupants in such a manner, nor could this be adequately secured by condition. Therefore, whilst the precise number of bed spaces has been disputed by the parties, for the purposes of the requirements of the NDSS the proposal would result in the provision of, at a minimum, a 3b4p dwelling.
16. To my mind, as the proposal includes living accommodation set over 2 floors, the proposal would be a 2-storey dwelling for which a 3b4p dwelling would require a GIA of 84sqm. However, even were I to consider the proposal as single storey, the proposal would nevertheless fall short of the minimum gross internal floor area for a one-storey 3b4p dwelling set out in the NDSS and required by Policy SWDPR 05 of the Local Plan. Equally, the Council's Statement that the proposed floor to ceiling heights would not meet NDSS requirements has not been substantively challenged. As a result, future occupiers would likely have insufficient internal space to accommodate household items or undertake day-to-day activities such as cooking, dining or the private enjoyment of their home, and certain rooms would appear of low height for future occupiers.
17. Given this, the proposed development would result in an unacceptably cramped internal layout which would not meet the needs of future occupiers. This would not be an efficient use of land, and would be harmful to the living conditions of future occupiers. That the proposal would result in the provision of slightly less internal

space than the existing dwelling, and that certain rooms of the proposed dwelling may compare favourably to some rooms in the existing house, does not justify the resulting harm.

Private Outside Space

18. Whilst the precise extent of private outside space provided is disputed, the plans show an area of reasonable size set aside to the rear of the site which would be provided as a garden for the proposed dwelling. When compared to the size and potential occupancy of the dwelling proposed, given the size of the proposed garden area there would be sufficient space for future occupiers to undertake private outdoor activities such as drying clothes, socialising, or the private use of their garden.
19. The South Worcestershire Design Guide Supplementary Planning Document Overarching Design Principles (2018) (the 'SPD') seeks for 20sqm of garden area per bedroom to be provided, though notes that this may not be achievable in all instances. Given my conclusions with regards the acceptability of the proposed private outside space, regardless of the precise extent of the garden space I find no conflict with the provisions of the SPD in this regard. Therefore, the proposal would provide satisfactory living conditions in respect of private outside space.

Conclusion – living conditions of future occupiers

20. Whilst the proposal would be acceptable with regards the provision of private outside space, it would not provide satisfactory internal space and that is the prevailing consideration. Therefore, the proposal would fail to provide satisfactory living conditions for future occupiers, with particular regard to internal space. The proposal would conflict with the relevant provisions of Policies SWDPR 05 and SWDPR 28 of the Local Plan, insofar as these policies require proposals to provide appropriate internal space for new dwellings assessed against the nationally described space standards, and provide an acceptable level of amenity.

Highway safety

21. The appeal site is located on a residential street that is relatively narrow, and at my site visit I observed a number of cars parking on the pavement in close proximity to the appeal site. On the evidence before me, the existing site provides off-street parking for 2 vehicles. There is a streetlight near the existing access. Some surrounding dwellings have boundary fences adjacent to their parking area, which in proximity to the appeal site are low in height.
22. The proposal would introduce an alternative parking arrangement for the existing dwelling, with 2 parking spaces provided. One of these spaces would be relatively narrow in proximity to the highway, due to the presence of the streetlight. The proposal would include a 2m high fence adjacent to one of the parking spaces proposed for the existing dwelling. Vehicles would access the proposed dwelling along a driveway that would pass the existing dwelling. The proposed driveway would be narrow in places. There is no evidence before me to suggest each dwelling would not generate a parking demand of 2 spaces.
23. Given the presence of a 2m fence that would extend almost up to the site boundary, vehicles exiting the site from either existing or proposed dwelling would have very limited visibility of pedestrians approaching from one direction. As a

result, vehicles leaving the site would only have limited time to react to pedestrians who could not be seen due to the presence of the proposed fence. This arrangement would increase the likelihood of accidents between vehicles and pedestrians, regardless of whether vehicles could exit in a forward gear or even if vehicle movements were low. This would be harmful to highway safety.

24. Whilst the appellant considers that 2 metre fences adjacent to parking areas are commonplace, given my observations at the site visit I saw no evidence to suggest such an arrangement nearby. In any event, this would not offset the adverse impact to highway safety that would result from the proposal. Equally, whilst given the relative width of the footway there may have been sufficient visibility for exiting vehicles to see approaching cars, this would not outweigh the harm identified to pedestrian safety.
25. In addition, given the narrow width of one of the parking spaces proposed to serve the existing dwelling, there would be very limited space for 2 vehicles to park. Although the plans state a specific width for the parking space, and the appellant suggests this would be sufficient, the drawings show that one parking space is much narrower than the adjacent space, despite both spaces being labelled with the same overall width. Given this discrepancy and the narrow width of one of the proposed parking places shown on the plans, the proposed parking arrangements for the existing property would be unlikely to allow for 2 cars to safely park. As such, even though sufficient parking may be provided for the proposed new dwelling, it is likely that occupiers of the existing dwelling would seek to park one vehicle on the road.
26. Additional vehicles parking on the road would be likely to exacerbate the existing on-street parking situation, and therefore likely result in inconsiderate parking as individuals seek to park on the footway near the property. This is likely to lead to some frustration and potentially impede the free flow of traffic and pedestrians, and as a result would be likely to be detrimental to highway safety.
27. At my site visit, I observed that whilst narrow the distance between the existing dwelling and the boundary was such that a car would be likely to be able to safely pass. Therefore, even though space is constricted and the proposal may not meet the minimum widths set out in the Streetscapes Design Guide (2022), the proposed arrangement would not be harmful to highway safety in this specific regard, and I afford limited weight to any conflict with the Streetscapes Design Guide on this matter. Equally, given the scale of development, the proposal would be unlikely to result in severe cumulative impacts to the road network. Nevertheless, these matters do not offset the harm identified, nor the need for development proposals to not result in an unacceptable impact on highway safety.
28. Given the above, the proposal would have a harmful effect on highway safety. The proposal would conflict with Policies SWDPR 05, SWDPR 06 and SWDPR 28 of the Local Plan. Amongst other matters, these policies require proposals to create safe environments, avoid unacceptable impact to highway safety, and identifies that vehicular traffic from development should be able to access the highway safely.

Living conditions – neighbouring occupiers

29. There is an existing dwelling, 62 Prestwich Avenue ('No 62'), which has a rear garden of moderate size adjacent to the appeal site. No 62 also has windows on

its rear elevation that broadly face towards the current rear garden of the appeal site. To the rear, No 62 looks over rear gardens, an area of garages and hardstanding, and a large bank of trees.

30. The proposal would introduce a dwelling in proximity to the rear garden and windows on the rear elevation of No 62. Whilst the appellant identifies the proposal as single storey, this dwelling would be set over two floors. The proposed dwelling would include a dormer window on the side elevation facing towards the rear garden of No 62, which the plans identify would be obscured. There would also be a window at first floor level facing towards the rear elevation of No 62. The proposed dwelling would be located broadly to the north of the rear garden of No 62, and broadly to the north east of the rear elevation.

Privacy

31. Given the current situation, there is little intervisibility between the rear windows of No 62 and the rear windows of other nearby properties. The proposal would result in the erection of a dwelling with a first floor window facing towards the rear windows of No 62 and in close proximity to them. Future occupiers of the proposed dwelling would therefore have direct and immediate visibility of the private internal areas of No 62. This would compromise the role of the rooms served by these windows of No 62 in providing a private area for inside activities. This would be harmful to the living conditions of the occupiers of No 62 as a result.
32. Although the proposed dwelling includes a window on its side elevation facing over the rear garden of No 62, the plans identify this window as being obscured. Had I not found harm arising in other regards, this matter could have been adequately secured via condition which, even if the window could have been opened on occasion, would have been sufficient to satisfactorily avoid harm arising as a result of this window in relation to privacy.

Outlook

33. Although the proposed dwelling would be located close to the rear garden and rear elevations of No 62, views both from the rear windows of No 62 and from within the rear garden would continue to take in the otherwise largely undeveloped rear garden of No 62 itself and those of other nearby properties. Whilst the proposed dwelling would be visible to existing occupiers of No 62, it would not be of such scale or extent such that harm would be caused to the living conditions of its occupiers as a result of outlook.

Sunlight

34. Given the location of the proposed dwelling broadly to the north east of the rear windows of No 62, the proposal would not be likely to cast a shadow on the rear windows of this dwelling for such a period so that harm was caused. Equally, as the proposed dwelling would be located to the north of the garden of No 62, the extent of any shadow falling on the garden area of No 62 would be likely to be limited both in terms of extent and in terms of the length of time any shadow would be cast. Therefore, the proposal would not harm the living conditions of the occupiers of No 62 as a result of sunlight.

Conclusion – living conditions of neighbouring occupiers

35. Whilst the proposal would not adversely affect the living conditions of the occupiers of No 62 in respect of sunlight and outlook, the proposal would fail to preserve the living conditions of the occupiers of No 62 in respect of privacy. Therefore, the proposal would have a harmful effect on the living conditions of the occupiers of No 62, with particular regard to privacy. The proposal would conflict with Policies SWDPR 05 and SWDPR 28 of the Local Plan. Amongst other matters, these policies require proposals to provide an acceptable level of amenity, and to maximise opportunities to improve the quality of life of current residents.

Other Matters

36. On the evidence before me, the proposal has been designed to avoid impact to a nearby pipeline. This matter weighs neutrally in the overall balance.
37. I acknowledge the appellant's concerns over the Council's handling of the application. However, this is not a matter which has any bearing on the planning merits before me in this appeal, and does not alter my findings.
38. Whilst reference is made to potential alterations to the proposal to address matters raised by the Council, no such amendments are before me. I have therefore not considered this matter further.

Planning Balance

39. The proposal would be harmful in respect of living conditions, would harm the character and appearance of the area, and would result in harm to highway safety. These harms would be significant and enduring, and for the reasons I have set out, the proposal would conflict with the development plan read as a whole.
40. The site is located in a settlement. Policy S4 of the Framework sets out that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision making policies in the Framework.
41. The officer report identifies that the Council is unable to demonstrate a five year housing land supply, which on the evidence before me stands at 2.37 years. This is a significant shortfall. The proposal would make a small contribution to meeting this shortfall, and I afford this matter moderate weight.
42. Equally, the proposal seeks to provide a dwelling for elderly relatives of the appellant in a family setting in close proximity which may allow for some care to be provided in the future, and may allow future occupants to live independently in their future years. Substantive details with regards the evidenced needs of the community in relation to older people is not before me, and as a consequence I afford this matter moderate weight.
43. The proposal would also result in economic benefits arising during both the construction and occupation phase, however given the scale of development the economic benefits would be limited.
44. However, the proposal would harm the character and appearance of the area, and I have set out in my reasoning above that the proposal would not respond to its context nor integrate with its surroundings. Policy DP3 of the Framework identifies

that in such circumstances development proposals should be refused if, without clear justification, they conflict with the provisions set out in paragraph 1 of that policy. I see no clear justification for the harm that I have identified, and the proposal would therefore conflict with this policy. In addition, the proposal would harm highway safety. It would conflict with Policy TR6 of the Framework which identifies that development proposals should be refused if they would have an unacceptable impact on highway safety. I give the harm arising from the conflict with these policies substantial weight.

45. The proposal constitutes additional residential development within an existing plot, and would result in harm to living conditions. Policy L2 of the Framework supports additional development within existing plots, however the policy identifies that such proposals should maintain acceptable living conditions for neighbours in terms of privacy, and maintain safe access and egress for occupiers and users. That is not the case in this instance, and given my reasoning, there would be a substantial adverse impact in this regard.
46. Policy S4 of the Framework identifies that the circumstances in which the benefits of approving development are likely to be substantially outweighed by adverse effects include the failure to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances. I have found conflict with the relevant provisions of Policies DP3 and TR6 of the Framework. Policy S4 further states that such circumstances also include where a proposal would result in a substantial adverse impact in relation to the application of Policy L2 to development within residential curtilages. Given these matters, and the harm identified, I find the benefits of the proposal would be substantially outweighed by its adverse effects when assessed against the national decision-making policies of the Framework. As such, Policy S4 of the Framework does not point to permission being granted in this instance.
47. Comments relating to the resultant benefits of the proposal with respect to individual circumstances are acknowledged. In determining this appeal, I have had due regard to the Public Sector Equality Duty in Section 149 of the Equality Act 2010. This requires me to consider the need to eliminate unlawful discrimination, to advance equality of opportunity and foster good relations between people who share a protected characteristic and people who do not share it. Protected characteristics include a person's age. Whilst the proposal may provide the opportunity to advance its aims by meeting the needs of those with these identified characteristics, when set against the harm identified I conclude that dismissing this appeal is a proportionate outcome.

Conclusion

48. The proposal would conflict with the development plan read as a whole and material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Therefore, for the reasons given above, the appeal should be dismissed.

D Marley

INSPECTOR